

26STCV02012 26STCV02012

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De La Barra v. Suh

26STCV02012

Defendant's Motion to Compel Plaintiff to Provide Further Responses
to Form Interrogatories (Set One)

Tentative Ruling

Defendant's motion is denied. Defendant's request for sanctions is denied.

Plaintiff's request for sanctions is granted
in part.

Background

On January 20, 2026, William De La Barra
("Plaintiff") filed the complaint in this action against Andrew Dongin Suh, Joanne
Oh, and Does 1 through 50, asserting a cause of action for negligence arising
out of a motor vehicle accident on June 20, 2024 on Olympic Boulevard in Los
Angeles.

On April 10, 2026, Andrew Dongin Suh and
Joanne Oh filed an answer.

On July 7, 2026, Andrew Dongin Suh
("Defendant") filed this motion to compel Plaintiff to provide further

responses to Form Interrogatories (Set One).

Plaintiff filed an opposition on July 27, and Defendant filed a reply on July 31.

No trial date has been set.

Legal Standard

“On receipt of a response to interrogatories, the propounding party may move for an order compelling a further response if the propounding party deems that any of the following apply: (1) An answer to a particular interrogatory is evasive or incomplete. (2) An exercise of the option to produce documents under Section 2030.230 is unwarranted or the required specification of those documents is inadequate. (3) An objection to an interrogatory is without merit or too general.”

(Code Civ. Proc., § 2030.300, subd. (a).)

Notice of a motion to compel further responses must be given

“within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing.” (Id., subd. (c).)

A motion to compel further responses must be accompanied by a meet-and-confer declaration and a separate statement or, in the discretion of the Court, a “concise outline of the discovery request and each response in dispute.” (Id., subd. (b)(1) & (b)(2); Cal. Rules of Court, rule 3.1345.)

“The court shall

impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2030.300, subd. (d).)

In Chapter 7 of the

Civil Discovery Act, Code of Civil Procedure section 2023.030, subdivision (a) provides, in pertinent part, that the court may impose a monetary sanction ordering that any person “engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including

attorney's fees, incurred by anyone as a result of that conduct." A "misuse of the discovery process" includes (among other things) failing to respond or to submit to an authorized method of discovery; making, without substantial justification, an unmeritorious objection to discovery; making an evasive response to a discovery request; disobeying a court order to provide discovery; and making or opposing, unsuccessfully, a motion to compel without substantial justification. (Code Civ. Proc., § 2023.010, subds. (d)-(h).)

Discussion

On April 10, 2026, Defendant served Plaintiff with Form Interrogatories (Set One). (Slack Decl., ¶ 4 & Exh. A.) On May 22, 2026, Plaintiff served his responses. (Id., ¶ 5 & Exh. B.)

Defendant moves to compel Plaintiff to provide further responses to Form Interrogatory 11.2.

Form Interrogatory 11.2 requires the responding party to provide certain information regarding any workers' compensation claims in the past 10 years. Plaintiff responded with information regarding only an injury occurring in March 2026 (after the accident at issue in this litigation). (Slack Decl., Exh. B, at p. 17.)

Defendant argues that this response is materially incomplete, as it does not mention "prior workers' compensation claim[s] noted in plaintiff's responses to Form Interrogatories No. 10.1 which occurred from March 19, 1998 to July 15, 2013." (Mem., at 5:1-3.)

Form Interrogatory 10.1 requires the responding party to provide certain information regarding prior "complaints or injuries that involved the same part of your body claimed to have been injured in the INCIDENT." In his response to Form Interrogatory 10.1, Plaintiff stated that he had experienced, and had sought medical care for, back and hand pain from March 1998 through July 2013 and neck and back pain in December 2023. (Slack Decl., Exh. B, at p. 14.)

Defendant argues that there is an inconsistency between Plaintiff's responses to Form Interrogatories Nos. 10.1

and 11.2, but that does not appear to be the case – or, at the least, Defendant has not, on this record, shown that there is any inconsistency. Nothing in the response to Form Interrogatory 10.1 identifies the injuries as related to a workers' compensation claim. And, of course, not every injury occurs in the workplace, and not every injury is covered by the workers' compensation program. The interrogatory responses indicate that Plaintiff experienced back and hand pain from March 1998 through July 2013 that had nothing to do with any injury covered by workers' compensation.

Moreover, and independently, Form Interrogatory No. 11.2 asks only for information about workers' compensation claims or demands made in the past 10 years. In responding to Form Interrogatory 11.2 in May 2026, a responding party need not provide information regarding workers' compensation claims made prior to May 2016.

Defendant has not shown that Plaintiff's verified response to Form Interrogatory 11.2 is incomplete or otherwise deficient. The motion to compel further responses is denied.

(The Court also notes that two arguments in Plaintiff's opposition lack merit. Defendant did file and serve a separate statement, and no Informal Discovery Conference was required by statute, court rule, or order.)

As Defendant's motion to compel is denied, so is Defendant's request for sanctions.

Plaintiff's request for sanctions is granted in part. Defendant has unsuccessfully made a motion to compel a further response to an interrogatory. Defendant has not acted with substantial justification, and there are no circumstances apparent in the record that would make the imposition of a sanction unjust.

The Court sets sanctions in the amount of \$900, calculated based on three hours of attorney work multiplied by counsel's reasonable billing rate of \$300 per hour. (Nemanpour Decl., ¶ 7.)

Conclusion

The Court DENIES

the motion of Defendant Andrew Dongin Suh to compel Plaintiff William De La Barra to provide further responses to Form Interrogatories (Set One).

The Court DENIES

Defendant's request for sanctions.

The Court GRANTS

IN PART Plaintiff's request for sanctions.

The Court ORDERS Defendant Andrew Dongin Suh and his counsel of record, Slack & Associates, APC, jointly and severally, to pay monetary sanctions under the Civil Discovery Act in the amount of \$900.00 to Plaintiff William De La Barra (through counsel) by September 8, 2026.

Counsel for Plaintiff is ORDERED to give notice.